IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

ITEM No. 112
(CAA)-69(PB)/2021

IN THE MATTER OF:
M/s. Gallant Ispat Ltd. and M/s. Gallant Metal Ltd. .... Petitioner/Applicant

Order under Section 230-232

Order delivered on 21.12.2021

CORAM:
JUSTICE RAMALINGAM SUDHAKAR
HON'BLE PRESIDENT

SH. HEMANT KUMAR SARANGI
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Petitioner	PCA Abhishek Nahta and Adv Rishabh Sachdeva for the Petitioner Companies in person
For the Respondent	Mr. Rishab Mehta, Adv. for RD Mr. Abhishek Maratha Sr SC & Pratyaksh Gupta Jr SC, for Dept. of IT Ms. Hemlata Rawat and Aayushmaan Vatsyayana for OL

ORDER

Mr. Pratayaksh Gupta, Junior Standing Counsel for the Income Tax Department states that the petitioner counsel have obtained the IT Department's report without any knowledge of the counsel for the IT Department, and has filed the same before this Tribunal. He states that no such report have been given to them. He further raised a serious objection in this regard and he referred to the names of the two officers namely Mr. Arvind Mohan Bhatnagar, Assistant Commissioner, Central Circle, Varanasi (Uttar Pradesh) and Mr. Shukanti Ghosh.

The Income Tax Department (Principal Commissioner of Income Tax Department, Varanasi)are directed to file report of the action taken, if there is a breach of the protocol in this matter.

However, Mr. Abhishek Nahta, Ld. PCA for the petitioner states that he will file a complaint against Mr. Pratayaksh Gupta, Ld. Jr. Counsel for I T Dept; for deliberately delaying the proceedings.

List the matter on 06.01.2022.

- Sd -

(RAMALINGAM SUDHAKAR)
PRESIDENT

- Sd -

(HEMANT KUMAR SARANGI)
MEMBER (TECHNICAL)

21.12.2021
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